



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: County Pocket Annexation #5
Date: April 28, 2025

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation. Annexation of County pockets is a 2022 City Council priority. A "County pocket" is an area of unincorporated land 100% surrounded by the City of Cheyenne.

The proposed Governing Body review schedule is as follows:

- Introduction and referral April 28, 2025
- Public Services Committee May 5, 2025
- Final consideration May 12, 2025

This annexation is comprised of 95 properties 100% surrounded by the City (See attached map). Of the 95 parcels, a majority are developed with residential uses, several are developed with commercial uses and others are undeveloped or incorporated into adjacent parcels under similar ownership. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active permits or development specific to the properties proposed for annexation.

On April 1, 2025, City staff mailed a courtesy notice by first class mail to all landowners included in this annexation area inviting them to a "Question and Answer" on Tuesday April 15, 2025.

Annexation also requires establishing a City zone. Staff has created a tentative timeline for the annexation and establishment of City zoning districts for the subject properties. Zone districts will be established on the assigned zoning process of Unified Development Code (UDC) section 2.2.8. In the event of split zoning (where two zone districts divide an existing tract of land), the City intends to apply the more restrictive zone unless extenuating circumstances exist.

Estimated Annexation Timeline*

Monday, April 28, 2025	Resolution certifying compliance introduction
Monday, May 5, 2025	Public Services Committee
Monday, May 12, 2025	Final consideration of resolution
Monday, May 19, 2025	Zoning consideration by Planning Commission
Tuesday, May 27, 2025	Annexation and Zoning ordinances Governing Body public hearing (annexation) and introduction and referral
Monday, June 2, 2025	Annexation and Zoning ordinances Public Services Committee
Monday, June 9, 2025	Annexation and Zoning ordinances Governing Body second reading
Monday, June 16, 2025	Annexation and Zoning ordinances Public Services Committee
Monday, June 23, 2025	Annexation and Zoning ordinances Governing Body third and final Reading
Approximately June 27, 2025	Annexation ordinance and map recording

*Dates subject to change.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING COMPLIANCE WITH WYOMING STATUTE § 15-1-402 FOR THE CITY-INITIATED ANNEXATION OF VARIOUS TRACTS OF LAND COMPLETELY SURROUNDED BY CURRENT CITY LIMITS SITUATE IN NORTHEAST CHEYENNE GENERALLY LOCATED NORTH OF DELL RANGE BOULEVARD, WEST AND EAST OF RIDGE ROAD, AND SOUTH OF STOREY BOULEVARD."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for various tracts of land situate in northeast Cheyenne as shown in Attachment A, which is attached hereto and incorporated herein, and which land is more particularly described as follows:

Area A:

TRACTS 1 THRU 8, 30 FEET OF VACATED GROVE AVENUE, TRACT 13 EXCEPT THE WEST 36 FEET, TRACTS 14, 15 AND 16, BLOCK 1 AND THE 16' ALLEY ADJACENT THERETO, HOLLAND SMITH SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 2.66 ACRES MORE OR LESS.

Area B:

THE WEST 435 FEET OF THE SOUTH 1/2 OF TRACT 31, DELL RANGE ADDITION, 2ND FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 2.94 ACRES MORE OR LESS.

Area C:

THE NORTH 192.18 FEET OF THE SOUTH 256.24 FEET OF THE WEST 340 FEET OF TRACT 4, DELL RANGE ADDITION, PLUS (RES 961104-02, B00K 1438, PAGE 1138, 6665.4 SQ') VACATED SUNRISE HILLS DRIVE, LOTS 2, 3, 6 AND 7, BLOCK 5; SUN RISE HILLS ADDITION - FILING NO. 1, PLUS (5100 SQ', RES #961104-02) VACATED SUNRISE HILLS DRIVE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 1.65 ACRES MORE OR LESS.

Area D:

THE NORTH 140.52 FEET OF THE SOUTH 281.04 FEET OF THE WEST 310 FEET OF TRACT 5 AND THE WEST 200 FEET OF THE NORTH 110.52 FEET OF THE SOUTH 140.52 FEET OF THE WEST 213.84 FEET OF TRACT 5, DELL RANGE ADDITION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 1.65 ACRES MORE OR LESS.

Area E:

LOT 6, 7, 8, 9 AND 12, DELL RANGE ADDITION, REPLAT OF THE SOUTH 1/2 OF TRACT 13, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 0.84 ACRES MORE OR LESS.

Area F:

ALL THAT PORTION OF TRACT 20, DELL RANGE ADDITION, BEING A SUBDIVISION OF THE WEST HALF OF SECTION 22, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT OF THE EAST BOUNDARY OF A PARCEL OF LAND DESCRIBED IN THAT CERTAIN DEED RECORDED IN BOOK 1061 AT PAGE 297 OF THE LARAMIE COUNTY RECORDS WHICH POINT BEARS S.0°32.5'E. A DISTANCE OF 105.0 FEET FROM A POINT ON THE NORTH BOUNDARY OF SAID TRACT 20 FROM WHICH THE NORTHEAST CORNER THEREOF BEARS EAST A DISTANCE OF 123.4 FEET (124 FEET IN BOOK 1061 AT PAGE THENCE S. 0°32.5 E. ALONG SAID EAST BOUNDARY A DISTANCE OF 45.0 FEET TO THE SOUTHEAST CORNER OF SAID PARCEL OF LAND MARKED BY REBAR WITH AN ALUMINUM I.D. CAP ATTACHED; THENCE S. 89°59'W. ALONG THE SOUTH BOUNDARY OF SAID PARCEL OF LAND A DISTANCE OF 124.5 FEET (124 FEET IN BOOK 1061 AT PAGE 297) TO A POINT MARKED BY A REBAR WITH AN ALUMINUM I.D. CAP ATTACHED; THENCE N 0°30'W. ALONG THE WEST BOUNDARY OF SAID PARCEL OF LAND A DISTANCE OF 45.0 FEET TO A POINT MARKED BY A NO.5 REBAR WITH AN ALUMINUM I.D. CAP ATTACHED; THENCE N 89°59'E. A DISTANCE OF 124.5 FEET TO THE POINT OF BEGINNING.

SAID AREA CONTAIN 0.15 ACRES MORE OR LESS.

Area G:

LOT 5, COLE HEIGHTS ADDITION AND THE ADJACENT 60' RIGHT OF WAY OF COLE PLACE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID AREA CONTAIN 0.50 ACRES MORE OR LESS.

Area H:

ALL PARCELS AND PLATTED RIGHTS OF WAY LOCATED WITHIN: BEGINNING AT THE SOUTHWEST CORNER OF LOT 5, BLOCK 4, GOULD SUBDIVISION, THENCE SOUTHERLY ALONG THE EASTERLY RIGHT OF WAY OF CINDY AVE. A DISTANCE OF 195.00 FEET TO A POINT ON THE SOUTHERLY RIGHT OF WAY OF EVERTON DR.; THENCE WESTERLY ALONG SAID RIGHT OF WAY 30.00 FEET TO THE NORTHEASTERLY CORNER OF TRACT 20 OF GREEN SUBDIVISION OF THE NORTH HALF OF TRACT 19, DELL RANGE ADDITION; THENCE SOUTHERLY A DISTANCE OF 600.00 FEET ALONG THE EASTERLY BOUNDARIES OF GREEN SUBDIVISIONS OF BOTH THE NORTH HALF AND SOUTH HALF OF TRACT 19, DELL RANGE ADDITION TO A POINT ON THE NORTHERLY RIGHT OF WAY OF GREGG WAY; THENCE WESTERLY ALONG SAID RIGHT OF WAY A DISTANCE OF 700.60 FEET TO THE SOUTHEASTERLY CORNER OF TRACT 20, DELL RANGE ADDITION; THENCE INCLUSIVE OF EXISTING PARCELS BEING PORTIONS OF TRACT 20, DELL RANGE ADDITION DESCRIBED AS CONTINUING WESTERLY ALONG SAID RIGHT OF WAY A DISTANCE OF 108 FEET TO A POINT; THENCE NORTHERLY 140.00 FEET TO A POINT; THENCE WESTERLY 140.00 FEET TO A POINT ON THE EASTERLY RIGHT OF WAY OF VOSLER PLACE; THENCE NORTHERLY ALONG SAID RIGHT OF WAY 175.00 FEET TO THE SOUTHWESTERLY CORNER OF LOT 1, BLOCK 1, CROW ADDITION; THENCE ALONG THE BOUNDARY OF SAID CROW ADDITION THE FOLLOWING FOUR COURSES; THENCE EASTERLY A DISTANCE OF 124.00 FEET TO A POINT; THENCE NORTHERLY 100 FEET TO A POINT; THENCE EASTERLY 124.00 FEET TO A POINT ON THE WESTERLY RIGHT OF WAY OF RIDGE ROAD; THENCE NORTHERLY ALONG SAID RIGHT OF WAY A DISTANCE OF 195.00 FEET TO THE POINT OF INTERSECTION WITH THE SOUTHERLY RIGHT OF WAY OF BASIN STREET EXTENDED; THENCE EASTERLY 80.00 FEET TO A POINT ON THE EASTERLY RIGHT OF WAY OF RIDGE ROAD; THENCE NORTHERLY ALONG SAID RIGHT OF WAY, BEING THE WESTERLY BOUNDARY OF GOULD SUBDIVISION, A DISTANCE OF 650 FEET TO THE NORTHWESTERLY CORNER OF LOT 5, BLOCK 2, GOULD SUBDIVISION; THENCE EASTERLY ALONG THE SOUTHERLY RIGHT OF

WAY OF CARLA DRIVE A DISTANCE OF 1483.80 FEET TO THE NORTHEASTERLY CORNER OF LOT 5, BLOCK 1, SEAVER SUBDIVISION; THENCE THE FOLLOWING THREE COURSES ALONG THE BOUNDARIES OF SEILOFF ADDITION, THENCE SOUTHERLY 180.02 FEET; THENCE EASTERLY 68.00 FEET; THENCE NORTHERLY 180.02 FEET TO THE SOUTHERLY RIGHT OF WAY OF CARLA DRIVE; THENCE CONTINUING EASTERLY ALONG SAID SOUTHERLY RIGHT OF WAY A DISTANCE OF 315.40 FEET TO THE NORTHEASTERLY CORNER OF LOT 1, BLOCK 1, SEAVERS SUBDIVISION; THENCE SOUTHERLY ALONG THE WESTERLY RIGHT OF WAY OF COLLEGE DRIVE A DISTANCE OF 600.00 FEET TO THE SOUTHEASTERLY CORNER OF LOT 2, BLOCK 2, SEAVERS SUBDIVISION; THENCE WESTERLY 389.00 FEET ALONG THE NORTHERLY RIGHT OF WAY OF EVERTON DRIVE TO THE SOUTHWESTERLY CORNER OF LOT 3, BLOCK 2, SEAVERS SUBDIVISION; THENCE NORTHERLY 330.00 FEET TO THE SOUTHEASTERLY CORNER OF DONOVAN SUBDIVISION; THENCE WESTERLY A DISTANCE OF 233.80 FEET ALONG THE NORTHERLY RIGHT OF WAY OF VICTORIA DRIVE TO THE SOUTHEASTERLY CORNER OF LOT 2, BLOCK 1, GOULD SUBDIVISION 2ND FILING; THENCE SOUTHERLY A DISTANCE OF 195.00 FEET TO THE SOUTHEASTERLY CORNER OF LOT 1, BLOCK 4, GOULD SUBDIVISION; THENCE WESTERLY A DISTANCE OF 120.00 FEET TO THE SOUTHWESTERLY CORNER OF SAID LOT 1, BLOCK 4, GOULD SUBDIVISION; THENCE SOUTHERLY A DISTANCE OF 135.00 FEET TO THE SOUTHEASTERLY CORNER OF LOT 9, BLOCK 4, GOULD SUBDIVISION; THENCE WESTERLY A DISTANCE OF 120.00 FEET ALONG THE NORTHERLY RIGHT OF WAY OF EVERTON DRIVE TO THE SOUTHWESTERLY CORNER OF SAID LOT 9; THENCE NORTHERLY A DISTANCE OF 135.00 FEET TO THE NORTHWESTERLY CORNER OF SAID LOT 9; THENCE WESTERLY A DISTANCE OF 360.00 FEET TO THE POINT OF BEGINNING.

SAID AREA CONTAIN 34.17 ACRES MORE OR LESS.

WHEREAS, Wyoming Statute § 15-1-404 specifies the requirements for initiating annexation proceedings by cities and towns and requires that a resolution be adopted certifying compliance with Wyoming Statute § 15-1-402;

WHEREAS, based on reasonable evidence, the Governing Body has determined that the territory to be annexed complies with Wyoming Statute § 15-1-402 and meets the following criteria found in Wyoming Statute § 15-1-402(a):

(i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the City of Cheyenne;

(ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the City of Cheyenne;

(iii) The areas sought to be annexed is a logical and feasible addition to the City of Cheyenne and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;

(iv) The area sought to be annexed is contiguous with or adjacent to the City of Cheyenne;

(v) The Governing Body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyoming Statute § 15-1-410; and,

(vi) The City of Cheyenne is prepared to, not less than twenty (20) business days prior to the public hearing required by Wyoming Statute § 15-1-405(a), send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under Wyoming Statute § 15-1-402(c) and notice of the time, date and location of the public hearing required by Wyoming Statute § 15-1-405(a).

WHEREAS, the City of Cheyenne has created an annexation report, which contains, at a minimum, the required information from Wyoming Statute § 15-1-402(c);

WHEREAS, the City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to Wyoming Statute § 15-1-402(e);

WHEREAS, the annexation of this territory will not create an area which is situated entirely within the boundaries of the City of Cheyenne, following criteria found in Wyoming Statute § 15-1-406(d); and

WHEREAS, the Governing Body finds the territory to be annexed does not meet the criteria specified under Wyoming Statute § 15-1-412 and thus does not require the written consent of the owner of the territory before being annexed by the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the land described above, and as shown in Attachment A, is compliant with Wyoming Statute §15-1-402, and that the procedures outlined in Wyoming Statute § 15-1-405 and Wyoming Statute § 15-1-406 shall hereby be initiated.

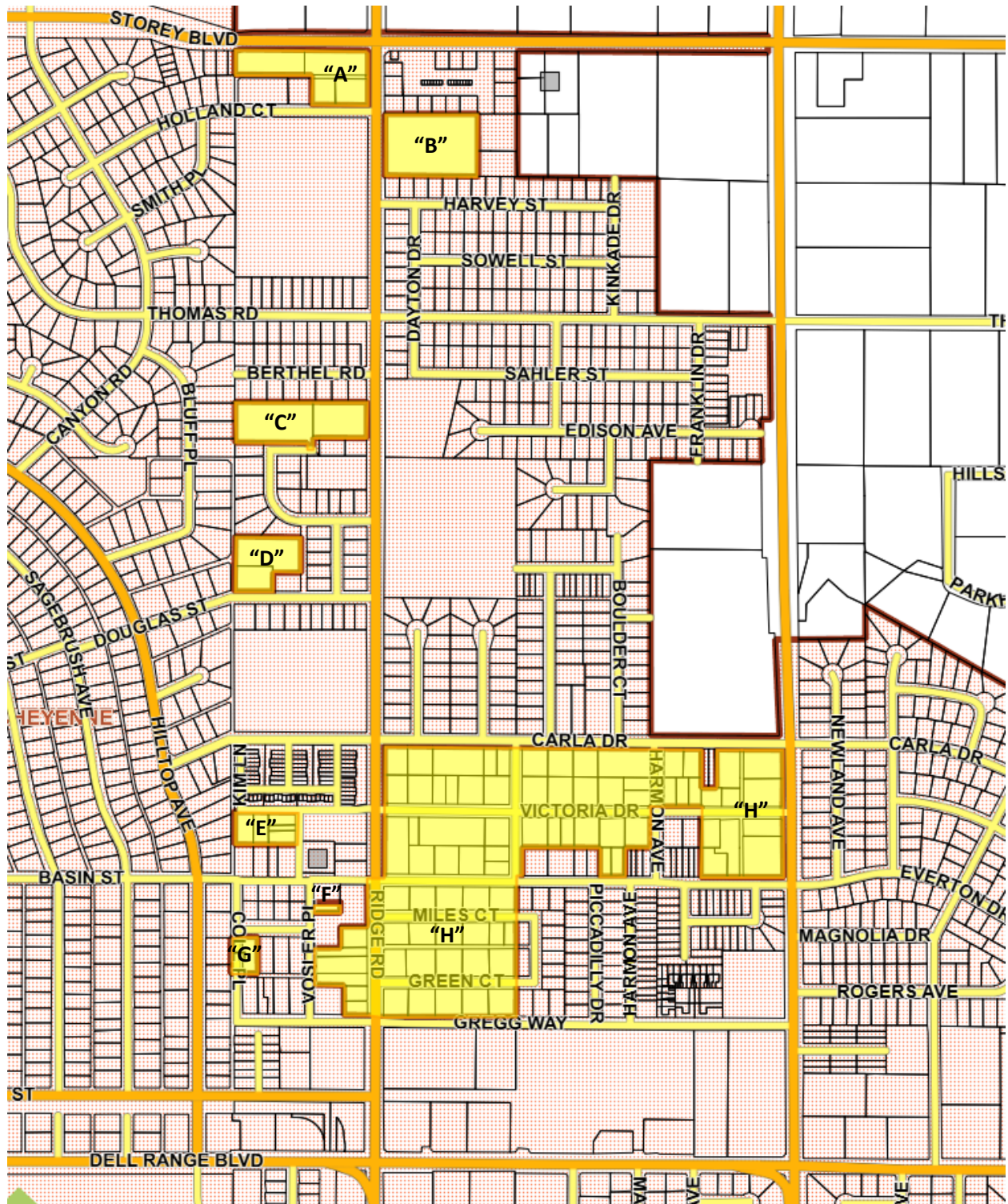
PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk



Attachment A